

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael Miskovski	Team: Squad #14	CCRB Case #: 202305394	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Tuesday, 06/13/2023 10:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/13/2024	Precinct: 46		
Date/Time CV Reported Wed, 06/14/2023 10:39 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 06/14/2023 10:39 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Adam Landesberg	05637	949195	GVSD Z2
2. PO Jack Orourke	28983	973643	046 PCT
3. PO Michael Phipps	23908	965415	046 PCT
4. PO John Dailey	23134	971032	046 PCT
5. PO Anthony Lombardo	20199	973546	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Robert Wichers	04706	958169	GVSD Z2
2. LT Rafael Tosado	00000	937928	GVSD Z2
3. PO Adrian Vasquez	09186	970916	046 PCT
4. PO Darian Wesler	31124	965903	046 PCT
5. SGT Ariel Cruz	01114	951644	046 PCT
6. PO Johnmichael Medina	02074	969974	046 PCT
7. PO Michael McCabe	31701	966698	046 PCT
8. PO Benjamin Warren	25650	970309	046 PCT
9. PO Camille Williams	31175	959369	046 PCT
10. PO Krishna Ghale	02381	967520	046 PCT
11. PO Leslie Kwashie	23947	967153	046 PCT
12. PO Erick Xoyatlacabada	20536	968197	046 PCT
13. PO Adam Rosello	04209	962067	046 PCT
14. PO Randy Bautista	10758	932306	046 PCT
15. PO Theodore Cecchini	06881	973993	046 PCT
16. PO Christian Roman	24995	963017	046 PCT
17. PO Anthony Torres	25917	971247	046 PCT
18. PO Erika Gonzalez	12344	970554	046 PCT
19. PO John Magee	22571	968591	046 PCT
20. DTS Fausto Ramirez	05515	956787	046 PCT
21. PO David Ventura	21055	970921	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Adam Landesberg	Force: Detective Adam Landesberg used physical force against § 87(2)(b)	A . Within NYPD Guidelines
B . DT3 Adam Landesberg	Force: Detective Adam Landesberg used physical force against § 87(2)(b)	B . Unable to Determine
C . PO Michael Phipps	Off. Language: Police Officer Michael Phipps made remarks to an individual based upon the perceived sexual orientation of an individual.	C . Substantiated
D . PO Michael Phipps	Discourtesy: Police Officer Michael Phipps spoke discourteously to an individual.	D . Substantiated
E . PO Jack Orourke	Abuse: Police Officer Jack Orourke made a sexually suggestive remark to an individual.	E . Substantiated
F . PO John Dailey	Discourtesy: Police Officer John Dailey spoke discourteously to an individual.	F . Substantiated
G . PO John Dailey	Abuse: Police Officer John Dailey improperly used his body-worn camera.	G . Substantiated
H . PO Anthony Lombardo	Off. Language: Police Officer Anthony Lombardo made remarks to an individual based upon the perceived sexual orientation of an individual.	H . Substantiated
I . PO Anthony Lombardo	Discourtesy: Police Officer Anthony Lombardo spoke discourteously to an individual.	I . Substantiated

Case Summary

On June 14, 2023, reporting non-witness § 87(2)(b) filed this complaint on behalf of her 14-year-old son, § 87(2)(b) with the CCRB via phone.

On June 13, 2023, at approximately 10:00 p.m., § 87(2)(b) walked along Valentine Avenue in the Bronx when a police vehicle containing Lieutenant Rafael Tosado, Sergeant Robert Wichers, and Detective Adam Landesberg, all of the Gun Violence Suppression Division (GVSD), followed behind him. Det. Landesberg exited the vehicle and pursued § 87(2)(b) for suspected possession of a weapon until they reached the outside of § 87(2)(b). Det. Landesberg then took § 87(2)(b) to the ground (**Allegation A: Force, Within NYPD Guidelines**) and allegedly grabbed the back of § 87(2)(b) head and pushed it into the ground (**Allegation B: Force, Unable to Determine**).

A crowd formed while the officers apprehended § 87(2)(b) and several officers from the 46th Precinct arrived, including PO Michael Phipps, PO John Dailey, PO Anthony Lombardo, PO Jack Orourke, PO Lesli Kwashie, PO David Ventura, Det. Fausto Ramirez, PO John Magee, PO Erika Gonzalez, PO Anthony Torres, PO Christian Roman, PO Theodore Cecchini, PO Randy Bautista, PO Ada Rosello, PO Erick Xoyatlacabada, PO Camille Williams, PO Benjamin Warren, PO Michael McCabe, PO Johnmichael Medina, PO Ariel Cruz, PO Darian Wesler, PO Adiran Vasquez, and PO Krishna Ghale. The crowd began to shout at the officers, with one individual telling the officers to “Suck my dick.” PO Phipps responded, “all of us? All of us? All of us? That’s gay. That’s gay,” and again, “all of us are gonna suck your dick? That’s gay.” (**Allegations C-D: Offensive Language and Discourtesy, substantiated**). PO Orourke told the individual, “Suck mine too!” (**Allegations E: Abuse of Authority, substantiated**). PO Dailey instructed the individual to “shut the fuck up,” but deactivated his BWC prior to the statement (**Allegations F-G: Discourtesy and Abuse of Authority, substantiated**). PO Lombardo laughed and called the individual a “fucking faggot” (**Allegations H-I: Offensive Language and Discourtesy, substantiated**).

§ 87(2)(b) was arrested for unlawful possession of a weapon upon school grounds (**BR 01**).
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

The investigation received BWC footage from PO Phipps, PO Dailey, PO Lombardo, PO Orourke, PO Kwashie, PO Ventura, Det. Ramirez, PO Magee, PO Gonzalez, PO Torres, PO Roman, PO Cecchini, PO Bautista, PO Rosello, PO Xoyatlacabada, PO Williams, PO Warren, PO McCabe, PO Medina, PO Cruz, PO Wesler, PO Vasquez, and PO Ghale (**BR 02**). Sgt. Wichers, Lieutenant Tosado, and Det. Landesberg did not have any BWC, as officers assigned to the Gun Violence Suppression Division were not equipped with BWC at the time of incident (**BR 03**). The investigation received cell phone footage from § 87(2)(b) which was recorded by an unidentified individual in the crowd (**BR 04**). The relevant aspects of video evidence are discussed in further detail below.

Findings and Recommendations

Allegation (A) Force: Detective Adam Landesberg used physical force against § 87(2)(b)

Allegation (B) Force: Detective Adam Landesberg used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) carried an approximately seven-inch long knife in his shorts pocket when Det. Landesberg, Sgt. Wichers, and Lieutenant Tosado observed him. It is further undisputed that when Det. Landesberg attempted to approach § 87(2)(b) under suspicion that § 87(2)(b) possessed a firearm, § 87(2)(b) ran away from Det. Landesberg.

§ 87(2)(b) stated (**BR 07**) that Det. Landesberg caught up to § 87(2)(b) and used one hand to grab onto his back and the other to grab on his chest. There was a motorbike parked on the sidewalk, approximately four to five feet away from where Det. Landesberg grabbed § 87(2)(b). Det. Landesberg then pushed § 87(2)(b) forward, which caused § 87(2)(b) to hit the motorbike on his chest, arms, head, and legs. § 87(2)(b) began to bleed from several unspecified parts of his

body. At this point, Sgt. Wichers joined Det. Landesberg, as the two held § 87(2)(b) onto the ground with his arms behind his back. Det. Landesberg then placed one of his hands onto the back of § 87(2)(b) head and slammed it into the ground, resulting in a bleeding cut to § 87(2)(b) left eye and eyebrow. The officers then lifted § 87(2)(b) and placed him under arrest.

§ 87(2)(b) provided photographs to the CCRB, which depicted abrasions to § 87(2)(b) left temple, cheek, and eyelid (**BR 11**), and others of a scratch to § 87(2)(b) left interior elbow (**BR 12**), and scratches to the exterior of his left knee (**BR 13**). § 87(2)(b) was uncooperative with further follow up attempts to obtain HIPAA release forms and an unsealing order for § 87(2)(b) (**BR 14**).

The cell phone video provided by § 87(2)(b) (**BR 04**) begins with Det. Landesberg and Sgt. Wichers attempting to handcuff § 87(2)(b) who is already on the ground, and lying on his stomach with his hands behind his back. Lieutenant Tosado stands in front of the officers to keep a crowd away. The individuals in the crowd shout that the officers slammed § 87(2)(b) against a wall. At 00:19, Det. Landesberg finishes handcuffing § 87(2)(b) and at 00:26, the officers lift § 87(2)(b) off the ground. The crowd shouts at the officers, as Det. Landesberg and Sgt. Wichers stand with § 87(2)(b) against the wall. At no point in the video does Det. Landesberg slam § 87(2)(b) head into the ground.

Sgt. Wichers, Lieutenant Tosado, and Det. Landesberg all stated that they did not have BWC assigned to them as officers from Gun Violence Suppression District (**BR 08-10**). As such, the investigation had no BWC video footage of the initial interaction with § 87(2)(b).

Det. Landesberg (**BR 09**) stated that he was the first and only officer of the three to chase after § 87(2)(b) when the pursuit began, and the pursuit lasted for a couple of seconds. When Det. Landesberg caught up to § 87(2)(b) he grabbed § 87(2)(b) with both hands in the upper chest area. The momentum from running and grabbing § 87(2)(b) caused them both to fall to the ground. Det. Landesberg noted that the takedown was not intentional or planned. § 87(2)(b) fell face-first on the ground and appeared to scratch the left side of his face. Det. Landesberg could not remember if there were any items or motorbikes in the way of the fall, nor did he remember pushing § 87(2)(b) into anything. Once on the ground, a struggle occurred, but Det. Landesberg could not recall anything other than that § 87(2)(b) pulled his arms away from the officers and twisted himself. Det. Landesberg grabbed and pulled § 87(2)(b) arms into handcuffs and Det. Landesberg did not take any other steps to overcome § 87(2)(b) resistance. Sgt. Wichers assisted with handcuffing § 87(2)(b) but Det. Landesberg could not recall more specifically how and Det. Landesberg denied that he or any other officer slammed § 87(2)(b) head into the ground.

Sgt. Wichers (**BR 08**) did not remember if he ever saw Det. Landesberg's takedown of § 87(2)(b). Further, Sgt. Wichers did not have any independent recollection of § 87(2)(b) ever being on the ground. Sgt. Wichers did not see Det. Landesberg ever take his hand and push or slam § 87(2)(b) head into the ground. Sgt. Wichers had no independent recollection of any injuries on § 87(2)(b).

Lieutenant Tosado (**BR 10**) did not recall ever witnessing § 87(2)(b) takedown, nor did he ever see Det. Landesberg push § 87(2)(b) head into the ground. Lieutenant Tosado noted that for most of the interaction his back was to § 87(2)(b) as he tried to keep the crowd away.

NYPD Patrol Guide Procedure 221-01 states that officers must use "only the reasonable force necessary to gain control or custody of a subject," (**BR 15**). It further adds that, "In determining whether the use of force is reasonable, members of the service should consider the following: nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the number of MOS; size, age, and condition of the subject in comparison to the MOS; subject's violent history; presence of hostile crowd; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence."

NYPD Patrol Guide Procedure 221-02 instructs officers to “apply no more than the reasonable force necessary to gain control” (BR 16).

§ 87(2)(g) [REDACTED] § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] § 87(2)(b) [REDACTED]
was admittedly in possession of a seven-inch knife that he was ultimately arrested § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is
therefore recommended that **Allegation A** be closed as *Within NYPD Guidelines*.

§ 87(2)(g) [REDACTED]
[REDACTED] § 87(2)(b) [REDACTED] § 87(2)(g) [REDACTED]
provided photographs depicting scratches to [REDACTED] head, § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] is therefore recommended that **Allegation B** be
closed as *Unable to Determine*.

Allegation (C) Offensive Language: Police Officer Michael Phipps made remarks to an individual based upon the perceived sexual orientation of an individual.

Allegation (D) Discourtesy: Police Officer Michael Phipps spoke discourteously to an individual.

Allegation (E) Abuse of Authority: Police Officer Jack Orouke made a sexually suggestive remark to an individual.

Allegation (F) Discourtesy: Police Officer John Dailey spoke discourteously to an individual.

Allegation (G) Abuse of Authority: Police Officer John Dailey improperly used his body-worn camera.

Allegation (H) Offensive Language: Police Officer Anthony Lombardo made remarks to an individual based upon the perceived sexual orientation of an individual.

Allegation (I) Discourtesy: Police Officer Anthony Lombardo spoke discourteously to an individual.

The investigation established that during § 87(2)(b) [REDACTED] apprehension, a crowd formed and the initial officers called for backup, at which point PO Phipps, PO Orouke, PO Dailey, and PO Lombardo arrived at the location. The investigation further established that the crowd shouted at the officers, including phrases like “suck my dick.”

PO Phipps’ BWC (BR 20) shows that at 02:08, an individual in the crowd shouts that officers can “suck his dick.” PO Phipps responds, “All of us?” The individual again says, “Suck my dick.” PO Phipps questions, “All of us? All of us? All of us? That’s gay. That’s gay.” At 2:20 PO Phipps states again, “All of us are gonna suck your dick? That’s gay.”

PO Orouke’s BWC (BR 19) shows that at 03:30, as he walks back to the police vehicles and hears the individual shout, “Suck my dick,” PO Orouke turns and says, “Suck mine too!”

PO Lombardo’s BWC (BR 18) shows that as the officers walk away and the individual makes the above-referenced statement, at 02:55, PO Dailey turns to the individual and shouts, “Shut the fuck up.” At 03:17, PO Lombardo walks back to his police vehicle while telling the individual to “swing” at him and at 03:24, PO Lombardo chuckles to himself and says of the individual, “fucking faggot.”

PO Dailey's BWC (BR 17) shows at 02:48, PO Phipps makes his above-referenced statement of "All of us are gonna suck your dick? That's gay" and PO Dailey's footage ends at 02:55, prior to PO Dailey making his own statement of "shut the fuck up" that was captured in PO Lombardo's BWC footage.

PO Phipps (BR 21) noted that he made a sarcastic statement that every officer sucking the individual's dick would be gay and added that there was no other reason for the remark. PO Phipps was trying to rebuff the individual's initial statement and did not mean to speak in a humiliating or dehumanizing manner. PO Phipps noted that it was to "deconflict" the interaction. PO Phipps did not mean the statement in a derogatory manner to one's sexual orientation.

PO Orourke (BR 24) did not recall making the statement shown in the video footage but believed that he made it out of frustration due to the crowd attempting to belittle the officers. PO Orourke could not remember what he meant by the statement and noted that it was only a "knee-jerk reaction." PO Orourke initially attempted to state that he was only saying "mine too" in reference to deactivating his BWC, but after further review of the video footage, admitted to hearing himself say "suck mine too."

PO Lombardo (BR 25) did not remember making the comments shown in the video footage. PO Lombardo was further unsure if it was his voice in the video, but acknowledged hearing something similar to the word, "faggot."

PO Dailey (BR 26) did not remember making the statement shown in the video footage. PO Dailey noted that his BWC did not capture the statement, while PO Lombardo's did. PO Dailey noted that he deactivated his camera because he believed that the interaction had concluded at that point.

NYPD Patrol Guide Procedure 200-02 (BR 22) instructs officers to treat "every citizen with compassion, courtesy, professionalism, and respect." It further instructs the officers to "maintain a higher standard of integrity than is generally expected of others because so much is expected of us."

In DAO DCT Case 2015-15012 (BR 23), the court found that officers' use of any possible profanity must serve a legitimate purpose and not solely be to belittle a civilian.

NYPD Patrol Guide Procedure 212-123 (BR 27) states that officers must record any police actions and record any interactions that become adversarial. Further, officers are instructed to record until the police action is concluded.

§ 87(2)(g)

It is therefore recommended that **Allegations C and D** be closed as *substantiated*.

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as *substantiated*.

§ 87(2)(g)

PO Dailey continued to engage with the individual at this point in the incident, he had not concluded his police activities

It is therefore recommended that **Allegations F and G** be closed as *substantiated*.

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegations H and I** be closed as *substantiated*.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been parties (BR 06).
- Det. Landesberg has been a member of the service for 14 years and has been a subject in six other CCRB complaints and ten allegations, none of which were substantiated. § 87(2)(g)
- PO Dailey has been a member of service for three years and has been a subject in two other CCRB complaints and ten allegations, none of which were substantiated. § 87(2)(g)
- PO Lombardo has been a member of service for two years and has been a subject in one other CCRB complaint and six allegations, none of which were substantiated. § 87(2)(g)
- PO Orourke has been a member of service for two years and has been a subject in two other CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)
- PO Phipps has been a member of service for six years and has been a subject in 13 other CCRB complaints and 23 allegations, of which 10 were substantiated:
 - 202002877 involved substantiated allegations of a discourteous word against PO Phipps. The Board recommended Command Discipline A and the NYPD imposed No Penalty.
 - § 87(2)(g)
 - § 87(2)(g)
 - 202300450 involved a substantiated allegation of a vehicle search against PO Phipps. The Board recommended formalized training and the NYPD imposed no penalty.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- A request for Notice of Claim was submitted to the NYC Office of the Comptroller and will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 14

Investigator: Michael Miskovski
Signature

SI Michael Miskovski
Print Title & Name

08/04/2024
Date

Squad Leader:	Cassandra Fenkel	IM Cassandra Fenkel	08/09/2024
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date